

23SMCV03704 23SMCV03704

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23SMCV03704 Hearing Date: September 2, 2026 Dept: M

CASE NAME: Chen, v. Fletcher,
et al.

CASE NO.: 23SMCV03704

MOTION: Motion

Continue Trial

HEARING DATE: 9/2/2026

Legal

Standard

Pursuant to California Rules of

Court ("CRC") rule 3.1332(a), "To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm.

All parties and their counsel must regard the date set for trial as certain." Under CRC Rule 3.1332(b), "A party seeking a continuance of the date set for trial, whether contested or uncontested or stipulated to by the parties, must make the request for a continuance by a noticed motion or an ex parte application under the rules in chapter 4 of this division, with supporting declarations. The party must make the motion or application as soon as reasonably practical once the necessity for the continuance is discovered."

Under CRC rule 3.1332(c),

"[a]lthough continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the

continuance. Circumstances that may include good cause include:

(1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;

(2) The unavailability of a party because of death, illness, or other excusable circumstances;

(3) The unavailability of trial counsel because of death, illness, or other excusable circumstances;

(4) The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;

(5) The addition of a new party if:

(A) The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or

(B) The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party's involvement in the case;

(6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or

(7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial."

CRC

Rule 3.1332(d) sets forth other factors that are relevant in determining whether to grant a continuance.

Analysis

Defendant Booth Grading & Excavating, Inc. moves for an order to continue the trial date in this action from October 19, 2026, to January 18, 2027, or later.

Defendant claims that additional time is needed to complete discovery and depositions prior to trial. Defendant asserts that Plaintiff Diana Chen has recently changed the nature, scope and extent of damages. Defendant's counsel states that Plaintiff presented at her depositions budgets for renovating her entire backyard which was a "complete surprise" and completely changed the scope of the damages claimed based on the prior arborists report. (You Decl., ¶¶ 59-64.) However, this information does not demonstrate that Plaintiff significantly or substantially changed the nature, scope and extent of claimed damages during the pendency of this action. At most, Plaintiff claims larger damages than Defendant expected given prior reports, but the nature and scope of the damages remains the same. In any event, the record shows that Defendant was able to fully investigate the extent of Plaintiff's claimed damages in discovery. Defendant also notes that the Palisades fire caused a multi-month delay in discovery since the parties were unable to enter the properties. (You Decl., ¶¶ 12-13.) Again, the record shows that the parties have diligently pursued discovery in this matter and that fact discovery will be concluded by the end of September. (Id., ¶¶ 19-69, 74.) For similar reasons, Defendant does not establish how being added to this case a year after commencement prevented it from conducting necessary discovery. Ultimately, the record demonstrates that discovery will be completed in time for trial.

In reply, Defendant claims that it has had trouble serving several witnesses with deposition notices. As to these witnesses, Defendant does not establish that they will provide necessary evidence, rather than merely cumulative evidence. Defendant only provides conclusory evidence that the witnesses are "key" "percipient" witnesses to the removal/pruning of the trees or the condition of the property prior to the fires. (See, e.g., Supp. You Decl., ¶¶ 8-10, 17-19, 38-49.) The Court believes that any percipient witnesses of such facts would likely be cumulative and not "essential" to a defense since already-deposed witnesses were also percipient witnesses to these facts. Additionally, Defendant does not show that it was unable to notice these depositions earlier, even if Defendant purportedly learned of these witnesses in June 2026. (Id., ¶¶ 13-16.)

In reply, Defendant's counsel

raises a new potential conflicting hearing. Defendant claims that its counsel now has another scheduling conflict because he was just assigned to handle an arbitration matter entitled M10 Dev., LLC v. Benson Security Systems, Inc. et al. (AAA Case No. 02-23-0001-5810) with an arbitration date of October 5, 2026. The prior handling attorney recently left the firm. (Supp. You Decl. ¶¶ 35-37, 59-61.) Since Defendant's counsel was just assigned this arbitration case, the Court does not find cause to continue this trial. Counsel claims that he cannot delegate this matter to others, but another counsel at the firm was handling this arbitration matter for three years. Thus, the Court finds it unlikely that another counsel at the firm cannot competently handle the arbitration. Otherwise, counsel should seek to continue that arbitration in light of the prior commitment to this trial.

In reply, Defendant also claims that Plaintiff gave deficient discovery responses and that a motion to compel further may be necessary. Defendant does not show when this discovery was served and when Plaintiff gave these deficient responses. (Supp. You Decl., ¶¶ 65-67.) Thus, the Court cannot conclude that Defendant has been reasonably diligent in obtaining this discovery.

Accordingly, the motion is DENIED.